

6.

CASE #	CASE NAME	HEARING NAME
CVRI2600687	SHARABY vs TESLA, INC.	MOTION TO COMPEL ARBITRATION

Tentative Ruling:

The defendant's request for judicial notice is denied.

The plaintiff's evidentiary objections to the declaration of Kim are overruled.

The defendant's motion to compel arbitration is granted. Prosecution of the action is stayed pending the resolution of the arbitration. The clerk shall place the matter on inactive status.

Analysis:

It is unnecessary to take judicial notice of documents already filed in the same action. (Cf. *Davis v. Southern California Edison Company* (2011) 236 Cal.App.4th 619, 632, fn. 11.)

"The custodian of a document need not have been present or employed when the document was created or signed to authenticate a document in a company's files." (*Iyere v. Wise Auto Group* (2023) 87 Cal.App.5th 747, 758.) Any qualified witness knowledgeable about documents may lay foundation for business records. (See *Estate of O'Connor* (2017) 16 Cal.App.4th 674, 694; Evid. Code, § 1400.)

The Court finds that the two declarations of Kim are sufficient to satisfy the defendant's burden to establish the existence of valid arbitration agreements both in the order agreement and in the RISC.

The plaintiff's claims clearly fall within the scope of the arbitration agreements. In the order agreement, the plaintiff agreed that arbitration would decide "any dispute arising out of or relating to any aspect of the relationship between [plaintiff] and Tesla." The RISC provides that arbitration shall decide "any dispute" between the parties, and specifically to claims relating to the "condition of this Vehicle"

The arbitration agreement in the order agreement is not adhesive because the plaintiff had the opportunity to opt out of arbitration but chose not to exercise that right. Thus, there is no procedural unconscionability.

Without procedural unconscionability, the agreements are enforceable.